

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NATASHA McKOY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER VITO
POLISENO, Shield No. 18478, POLICE OFFICER
BRIANA DONOVAN, Shield No. 6920, SERGEANT
DANIEL GONG, Tax Identification Number 938588, and
POLICE OFFICERS JOHN DOES #1-10 (names and
numbers of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 1, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Vito Polisenno, Shield No. 18478, 67nd Precinct
Police Officer Briana Donovan, Shield No. 6920, 67th Precinct
Sergeant Daniel Gong, Tax Identification No. 938588

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff NATASHA McKOY, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 1, 2014, at approximately 3:30 a.m., plaintiff was lawfully present outside of and in the vicinity of Cafe Omar which is located at 1744 Nostrand Avenue, Brooklyn, New York when she was assaulted, battered, subjected to excessive force, falsely arrested, unlawfully seized, and falsely imprisoned by the defendant New York City Police Officers from the 67th Precinct, without probable cause or legal justification, by, among things. Those officers that did not touch claimant failed to intervene and protect her from being assaulted, battered, falsely arrested and illegally seized and subjected to unsanitary detention conditions. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, abused process, denied plaintiff the right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York

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PARTIES

2. Plaintiff Natasha McKoy is a resident of the state of New York.

3. Police Officer Vito Polisenno, Shield No. 18478, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Vito Polisenno, Shield No. 18478, is and was at all times relevant herein, assigned to the 67th Precinct.

5. Police Officer Vito Polisenno, Shield No. 18478, is being sued in his individual and official capacity.

6. Police Officer Briana Donovan, Shield No. 6920, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Police Officer Briana Donovan, Shield No. 6920, is and was at all times relevant herein, assigned to the 77th Precinct.

8. Police Officer Briana Donovan, Shield No. 6920, is being sued in his individual and official capacity.

9. Sergeant Daniel Gong, Tax Id # 938588, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Sergeant Daniel Gong, Tax Id # 938588, is and was at all times relevant herein, assigned to the 77th Precinct.

11. Sergeant Daniel Gong, Tax Id # 938588 is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. On March 17, 2014, defendant City of New York conducted a hearing pursuant to general Municipal Law Section 50-H.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On January 1, 2014 at approximately 3:30 a.m., plaintiff was lawfully present outside of and in the vicinity of Cafe Omar which is located at 1744 Nostrand Avenue, Brooklyn, New York when she was assaulted, battered, subjected to excessive force, falsely arrested, unlawfully seized, and falsely imprisoned by the defendant New York City Police Officers from the 67th Precinct, without probable cause or legal justification, by, among things. Those officers that did not touch claimant failed to intervene and protect her from being assaulted, battered, falsely arrested and illegally seized and subjected to unsanitary detention conditions.

22. On New Years Eve, in the early morning hours of January 1, 2014 plaintiff and her friends celebrated New Year's at Cafe Omar in Brooklyn, New York.

23. At approximately 3:00 a.m. a large fight broke out in a part of the bar.

24. Plaintiff and her friends complied with instructions given by the employees of the bar for all patrons to exit the building immediately and she exited the establishment.

25. When plaintiff exited the establishment she observed many NYPD officers in front of the establishment.

26. Plaintiff was tackled from behind by a male police officer shortly after she exited the bar, for no apparent reason or legal basis.

27. Thereafter, without any legal basis to behave in this manner, the same defendant police officer placed plaintiff in a "bear hug".

28. Then, also without legal justification, 5-6 defendant police officers pushed plaintiff backward toward a gate.

29. Then, the defendant police officer positioned behind plaintiff tripped and fell and pulled plaintiff backwards on top of the officer.

30. Plaintiff fell to the ground and hit her head on the pavement.

31. Then the defendant police officer flipped plaintiff backwards in a summersault motion and plaintiff's head hit the ground again.

32. Further, plaintiff was assaulted and battered by the officers and even punched her in the face when she stood up causing her to suffer an abrasion on her face, neck pain, lower back pain, bruises and other injuries.

33. Plaintiff was unlawfully handcuffed by defendants on the ground and pulled to her feet by the handcuffs causing bruises to her wrists.

34. Then plaintiff was brought to a police car where the officers intentionally slammed the door on her leg and foot causing claimant pain and injury.

35. Another officer who is not a defendant in this case intervened and stopped the officer from slamming the car door on plaintiff additional times.

36. Plaintiff was transported to the 67th precinct where she tried, without success, to request medical attention and to file a report against the officers for using excessive force against her.

37. The officers placed plaintiff in a holding cell with human feces and a cell that was filled with homeless people who smelled very bad.

38. Plaintiff was eventually transported to Central Booking and she saw a judge at approximately 11:00 a.m. on January 2, 2014 and was released on her own recognizance.

39. Upon being released, claimant went home and finally was able to sleep. The following day, on January 3, 2014, plaintiff went to Brookdale Hospital and received treatment for her injuries.

40. Plaintiff has been receiving medical treatment for her injuries since the date of the underlying incident.

41. Plaintiff was falsely imprisoned and arrested and searched without probable cause by the police officers. Further the officers assaulted and battered Plaintiff and used excessive force against her. Moreover, the officers intentionally placed plaintiff in a particularly unsanitary and dirty cell with human feces all over the floor.

42. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, false imprisonment, and excessive force used against plaintiff.

43. The unlawful search, seizure, false arrest and imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain economic, physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, seized, falsely imprisoned, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal search inside plaintiff's pockets and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 58 with the same force and effect as if fully set forth herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against plaintiff Natasha McKoy, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff Natasha McKoy, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Malicious Abuse of Process

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 66 with the same force and effect as if fully set forth herein.

68. Defendants issued legal process to place plaintiff Natasha McKoy, under arrest.

69. Defendants arrested plaintiff Natasha McKoy, in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to justify the physical injuries the officers unlawfully caused to plaintiff's person.

70. Defendants acted with intent to do harm to plaintiff Natasha McKoy, without excuse or justification.

71. As a result of the foregoing, plaintiff Natasha McKoy, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The use of excessive force by defendants by, committing the acts against plaintiff described herein constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

76. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Assault

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

79. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Battery

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

83. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

84. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Negligence

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. Defendants owed a duty of care to plaintiff.

87. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently striking, pushing, macing and hitting plaintiff and assaulting and battering plaintiff.

88. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

89. All of the foregoing occurred without any fault or provocation by plaintiff.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Natasha McKoy. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

95. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Natasha McKoy demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 1, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 1, 2015

/s/
STUART E. JACOBS